

19CV06393 Bank of America NA vs Jeffrey S Villano

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-20

Motion: Motion: Judgment on Pleadings

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Tentative Ruling: Bank of America NA vs Jeffrey S Villano

Case Number

19CV06393

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/20/2026 - 10:00

Nature of Proceedings

Motion: Judgment on Pleadings

Tentative Ruling

Bank of America, N.A. v. Jeffrey S. Villano

Case No. 19CV06393

Hearing Date: July 20, 2026

HEARING: Motion of Plaintiff Bank of America, N.A. for Judgment on the Pleadings

ATTORNEYS: For Plaintiff Bank of America, N.A.: David Nash, Suttell & Hammer, APC

For Defendant Jeffrey S. Villano: No appearance

TENTATIVE RULING: Plaintiff Bank of America, N.A.'s motion for judgment on the pleadings is ordered off calendar without prejudice. The clerk of the court shall provide notice of this ruling.

Background:

This collections action was initiated on December 4, 2019, when plaintiff Bank of America, N.A., filed a limited civil complaint against defendant Jeffrey S. Villano, setting forth two causes of action for (1) book account and (2) account stated. The complaint alleges that plaintiff issued a credit card account to defendant and defendant failed to pay the outstanding balance of \$7,130.96.

On October 9, 2020, the court entered a minute order indicating that the parties reached a settlement:

"NATURE OF PROCEEDINGS: Settlement Conference

"The parties reached a settlement under CCP 664.6[.]

"The Defendant will pay \$3600.00 over a period of 39 months beginning on 12/9/2020 and due on the 9th of each month at \$50.00 a month for 6 months. Then \$100.00 a month beginning 6/9/2021. If the Defendant default's a judgment will be entered for \$7,130.96 plus costs \$294.50.

"The Plaintiff will submit a stipulation.

"All future hearings are vacated." (Minute Order, October 9, 2020.)

Apparently, the stipulation referenced in the October 9, 2020, minute order was never reached or other issues arose with the settlement. The court's records do not reflect that plaintiff submitted a settlement stipulation to the court.

On June 21, 2022, plaintiff filed a motion to deem admitted matters stated in requests for admission based on defendant's failure to respond. The court granted plaintiff's motion on August 15, 2022, and entered a subsequent order as to the admitted matters on August 17, 2022.

Almost four years elapsed without any activity in this case. Then, on May 6, 2026, plaintiff filed this motion for judgment on the pleadings based on the matters deemed admitted in the court's August 17, 2022, order. Defendant did not file any opposition or response to this motion.

Analysis:

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service." (Cal. Rule of Court, rule 3.1300(a).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Id., rule 3.1300(c).) Plaintiff filed a proof of service as to its memorandum of costs. However, plaintiff's moving papers in support of its motion for judgment on the pleadings, including the motion, memorandum, declarations, and request for judicial notice, are not supported by a proof of service.

The court has also reviewed this file including the original motion by plaintiff to deem matters admitted and the resulting order on which plaintiff's current motion for judgment on the pleadings is based. (See Mtn. for Order Admitting Truth of the Matters Specified, filed June 21, 2022 [RFA Motion] & Order Deeming Requests for Admissions Admitted, filed Aug. 17, 2022.) Defendant is a pro se litigant. The address for defendant as stated in his answer is 11 Compass Lane #208, Goleta, CA 93117. (See Answer, filed January 2, 2020.) There is no subsequent change of address on file. (See Cal. Rules of Court, rule 2.200.) However, the original RFA Motion was served by mail at a different address, ostensibly for defendant, at 5172 Walnut Park Dr, Santa Barbara CA 93111-1739. (See RFA Motion.). The underlying requests for admission were also served by mail at this Walnut Park Dr. address on March 30, 2022. (See Decl. of Shane T. Wate ISO RFA Motion, filed June 21, 2022, Ex. A.)

For all these reasons, the court will order this motion off calendar without prejudice to plaintiff refiling its motion. If plaintiff refiles its motion for judgment on the pleadings, plaintiff should address this apparent issue of service as to its original RFA Motion to deem matters admitted and the underlying requests for admission

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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